

CARDHOLDER MEMORANDUM — CALL MEMORIALIZATION

Written record of recorded supervisor call — American Express Dispute Resolution

Cardholder:	William J. Marceau
Email:	wmarceau@marceausolutions.com
Cases:	D-93497818 (Card ending 1007) / D-93497819 (Card ending 1049)
Merchant:	Propane Fitness Ltd, Newcastle, United Kingdom
Date & time of call:	Thursday, June 11, 2026, approx. 4:30–4:56 PM EDT
Call placed to:	American Express, 1-800-528-4800
Supervisor:	Michael — Employee ID 7273100
Related filing:	CFPB Complaint #260611-34004878 (filed earlier same day)

PURPOSE OF THIS MEMORANDUM

The cardholder requested that American Express provide its position in writing, together with the supervisor's employee ID, by email on the date of the call. The supervisor stated that he had **no way to provide anything in writing**. As on a prior occasion, the cardholder is therefore creating this written record of the call — which the supervisor confirmed is recorded on the American Express side — for the cardholder's files and for the open CFPB complaint.

WHAT AMERICAN EXPRESS STATED ON THE RECORDED CALL

During the call, Supervisor Michael (Employee ID 7273100), after reviewing the documentation on file, made the following statements, which the cardholder records as follows:

1. American Express **will not credit the remaining foreign-exchange conversion shortfall of \$2,271.66 directly** to the cardholder's account.
2. Instead, the cardholder must complete a **“refund completion form” said to originate from the merchant, Propane Fitness**, in order for the merchant to refund the remaining amount.
3. American Express is **“following the terms and conditions of the contract”** between the cardholder and the merchant, and the supervisor stated he has **“no way to override”** this.
4. When asked to identify the specific contractual term relied upon, no specific clause was read or cited.
5. American Express stated it has **no mechanism to provide anything in writing**, including the above position and the supervisor's employee ID.
6. The supervisor confirmed the call is **recorded on the American Express side**.

CARDHOLDER'S RECORDED OBJECTIONS

The cardholder stated on the same recorded line that he **declines to complete any merchant form**, is **leaving both dispute cases (D-93497818 and D-93497819) open**, and does not accept being routed back to the merchant. The cardholder noted the following, which American Express did not rebut with any specific contractual or regulatory citation:

1. This is a chargeback dispute governed by the cardholder's **American Express Cardmember Agreement and the federal Fair Credit Billing Act (Regulation Z)** — not by the merchant's terms and

conditions. A merchant's contract cannot waive the cardholder's federal billing-error protections or limit American Express's obligations to the cardholder.

2. The merchant issues refunds in **British pounds**. **American Express** chooses the rate at which that refund is converted to U.S. dollars. American Express converted the £6,300 refund at an implied **\$1.00/£ parity rate** rather than the **\$1.3511/£** rate at which it posted the original charges. The resulting shortfall is a product of American Express's own currency conversion, not the merchant's contract.

3. The cardholder **won this chargeback** precisely because the merchant breached its own terms and refused to respond. Directing the cardholder back to that merchant is not a valid resolution of a won chargeback.

STATUS AND NEXT STEPS

Both dispute cases remain **open**. The cardholder completed **no merchant form** and accepted **no resolution** on this call. American Express's refusal to credit the **\$2,271.66** shortfall, its direction of the cardholder back to the merchant, and its stated reliance on the merchant's terms and conditions are now memorialized for the cardholder's open **CFPB complaint #260611-34004878**, to which American Express is required to respond in writing. This memorandum, together with the cardholder's contemporaneous notes and the American Express recording of the call, constitutes the cardholder's record of what was said.

Respectfully submitted,

William J. Marceau

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Naples, Florida, United States

Thursday, June 11, 2026